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ORDINANCE NO. 217, 2025
OF THE COUNCIL OF THE CITY OF FORT COLLINS
AMENDING CHAPTER 5, ARTICLE IV OF THE CODE OF THE CITY OF FORT
COLLINS FOR THE PURPOSE OF REPEALING THE 2021 INTERNATIONAL
MECHANICAL CODE AND ADOPTING THE 2024 INTERNATIONAL MECHANICAL
CODE, WITH AMENDMENTS

A. Since 1924, the City has reviewed, amended and adopted the latest nationally recognized building standards available for the times.

B. Upon recommendation of City staff, the City Council has determined that it is in the best interests of the City to align eleven interconnected basic construction codes under one publication year.

C. The eleven interconnected basic construction codes are the *International Building Code*, *International Residential Code*, *International Mechanical Code*, *International Fuel Gas Code*, *International Energy Conservation Code*, *International Property Maintenance Code*, *International Swimming Pool and Spa Code*, *International Existing Building Code*, *International Plumbing Code*, *International Fire Code*, and the *International Wildland-Urban Interface Code* to the extent adopted by the *Colorado Wildfire Resiliency Code*.

D. The City Council has determined that the 2024 publication year of these interconnected basic construction codes should be adopted and that any counterpart *International* codes previously adopted should be repealed, both in order to align the publication years of the codes and because the 2024 publications contain improvements in construction code regulation.

E. City staff has conducted a significant public outreach program, working with the regulated construction industry and building professionals.

F. The adoption of the interconnected basic construction codes has been presented to community groups and feedback has been received from the Water Commission, Energy Board, Commission on Disability, Natural Resource Advisory Board, Poudre Fire Authority Board, Building Review Commission, Affordable Housing Board, and Air Quality Advisory Board.

G. The City Council has determined that it is in the best interest of the health, safety and welfare of the City and its residents that the *2024 International Mechanical Code* be adopted, with local amendments as set forth in this Ordinance.

H. Pursuant to the City Charter, Article II, Section 7, City Council may enact any ordinance which adopts a code by reference in whole or in part provided that before adoption of such ordinance the Council hold a public hearing thereon and that notice of the hearing shall be published twice in a newspaper of general circulation published in the City, with one of such publications occurring at least eight (8) days preceding the

hearing and the other publication occurring at least fifteen (15) days preceding the hearing.

I. In compliance with City Charter, Article II, Section 7, the City Clerk published in the Fort Collins Coloradoan such notice of hearing concerning adoption of the 2024 International Codes on November 16, 2025, and November 23, 2025.

J. Attached as Exhibit A and incorporated herein by reference is the Notice of Public Hearing dated November 16, 2025, that was so published and which the Council hereby finds meets the requirements of Article II, Section 7 of the City Charter.

In light of the foregoing recitals, which the Council hereby makes and adopts as determinations and findings, BE IT ORDAINED BY THE COUNCIL OF THE CITY OF FORT COLLINS as follows:

Section 1. The City Council hereby repeals the 2021 *International Mechanical Code* ("IMC") and adopts 2024 IMC as amended by this Ordinance.

Section 2. Section 5-106 of the Code of the City of Fort Collins is hereby amended to read as follows:

Sec. 5-106. – Adoption of standards.

Pursuant to the power and authority conferred on the City Council by C.R.S. § ~~Colorado Revised Statutes Section~~ 31-16-202 and Article II, Section 7 of the Charter, the City Council has adopted the ~~2021~~2024 *International Mechanical Code*, published by the International Code Council, ~~second printing (May 2024)~~, as amended by the City, which shall have the same force and effect as though set forth in full herein. The subject matter of the ~~2021~~2024 *International Mechanical Code* adopted herein includes comprehensive provisions and standards regulating and controlling the design, construction, installation, quality of materials, location, operation and maintenance of heating, ventilating, cooling and refrigeration systems, incinerators, miscellaneous heat-producing appliances for the purposes of protecting public health, safety and general welfare. None of the ~~2021~~2024 *International Mechanical Code* Appendices are adopted.

Section 3. Section 5-107 of the Code of the City of Fort Collins is hereby repealed and reenacted to read as follows:

Sec. 5-107. – Amendments and deletions to the 2024 International Mechanical Code.

The 2024 *International Mechanical Code* adopted in § 5-106 is amended as follows:

1. **Section 101.1 Title** is amended to read as follows:

101.1 Title. These regulations shall be known as the *Mechanical Code* of the City of Fort Collins, hereinafter referred to as “this code.”

2. **Section 102.8 Referenced codes and standards** is amended to read as follows:

102.8 Referenced codes and standards. The codes and standards referenced herein shall be those that are listed in Chapter 15 and such codes and standards Section 101.4 of the adopted *International Building Code*, entitled “Referenced Codes”, and shall be considered as part of the requirements of this code to the prescribed extent of each such reference and as further regulated in Sections 102.8.1 and 102.8.2.

Exception: Where enforcement of a code provision would violate the conditions of the listing of the *equipment* or *appliance*, the conditions of the listing and the manufacturer’s installation instructions shall apply.

3. **Section 103 CODE COMPLIANCE AGENCY** is deleted in its entirety and replaced with the following:

SECTION 103 CODE COMPLIANCE AGENCY

~~**[A] 103.1 Creation of agency.** The **[NAME OF DEPARTMENT]** is hereby created and the official in charge thereof shall be known as the code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.~~

~~**[A] 103.2 Appointment.** The code official shall be appointed by the chief appointing authority of the jurisdiction.~~

~~**[A] 103.3 Deputies.** In accordance with the prescribed procedures of this jurisdiction and with the concurrence of the appointing authority, the code official shall have the authority to appoint a deputy code official, other related technical officers, inspectors and other employees. Such employees shall have powers as delegated by the code official.~~

SECTION 103 CODE ADMINISTRATION

103.1 Entity charged with code administration. The entity charged with code administration shall be as determined in accordance with Section 103 of the adopted *International Building Code*, entitled “CODE ADMINISTRATION.”

4. **Section 105.1.1 Annual permit** is deleted in its entirety.

~~**[A] 105.1.1 Annual permit.** Instead of an individual construction permit for each *alteration* to an already *approved* system or *equipment* or application installation, the code official is authorized to issue an annual permit upon~~

application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the *building*, structure or on the premises owned or operated by the applicant for the permit.

5. **Section 105.1.2 Annual permit records** is deleted in its entirety.

~~[A] 105.1.2 Annual permit records.~~ The person to whom an annual permit is issued shall keep a detailed record of *alterations* made under such annual permit. The code official shall have access to such records at all times or such records shall be filed with the code official as designated.

6. **SECTION 108 FEES** is deleted in its entirety and replaced with the following:

SECTION 108 FEES

~~[A] 108.1 Payment of fees.~~ A permit shall not be valid until the fees prescribed by law have been paid. An amendment to a permit shall not be released until the additional fee, if any, has been paid.

~~[A] 108.2 Schedule of permit fees.~~ Where work requires a permit, a fee for each permit shall be paid as required, in accordance with the schedule as established by the applicable governing authority.

~~[A] 108.3 Permit valuations.~~ The applicant for a permit shall provide an estimated value of the work for which the permit is being issued at the time of application. Such estimated valuations shall include the total value of work, including materials and labor, for which the permit is being issued, such as mechanical *equipment* and permanent systems. Where, in the opinion of the code official, the valuation is underestimated, the permit shall be denied unless the applicant can show detailed estimates to the code official. The code official shall have the authority to adjust the final valuation for permit fees.

~~[A] 108.4 Work commencing before permit issuance.~~ Any person who commences work on a mechanical system before obtaining the necessary permits shall be subject to a fee established by the code official that shall be in addition to the required permit fees.

~~[A] 108.5 Related fees.~~ The payment of the fee for the construction, *alteration*, removal or demolition for work done in connection to or concurrently with the work authorized by a permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.

~~[A] 108.6 Refunds.~~ The code official is authorized to establish a refund policy.

SECTION 108 FEES

108.1 Fees. All items relating to fees shall be as specified in Section 109 of the adopted *International Building Code*, entitled "FEES."

108.2 Work commencing before permit issuance. All items related to work commencing before permit issuance shall be made pursuant to the applicable provisions of Section 109.2 of the adopted *International Building Code*.

7. **Section 111.3 Testing** is deleted in its entirety and replaced with the following:

~~**[A] 111.3 Testing.** Mechanical systems shall be tested as required in this code and in accordance with Sections 111.3.1 through 111.3.3. Tests shall be made by the permit holder and observed by the code official.~~

111.3 Testing. Installed heating, cooling and *ventilation systems* shall be performance-tested by an *approved* agency and adjusted to operate within design specifications, in accordance with ANSI/ACCA QI 5 *HVAC Quality Installation Specification*. Documentation of results shall be submitted to the *building official* prior to approval.

Exception: *Buildings* subject to commissioning requirements in Section C408 of the *International Energy Conservation Code*.

8. **SECTION 112 MEANS OF APPEAL** is deleted in its entirety and replaced with the following:

SECTION 112 MEANS OF APPEALS

~~**[A] 112.1 General.** In order to hear and decide appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code, there shall be and is hereby created a board of appeals. The board of appeals shall be appointed by the applicable governing authority and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business and shall render all decisions and findings in writing to the appellant with a duplicate copy to the code official.~~

~~**[A] 112.2 Limitations on authority.** An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply or an equivalent or better form of construction is proposed. The board shall not have the authority to waive requirements of this code.~~

~~**[A] 112.3 Qualifications.** The board of appeals shall consist of members who are qualified by experience and training on matters pertaining to the provisions of this code and are not employees of the jurisdiction.~~

~~[A] 112.4 Administration. The code official shall take action without delay in accordance with the decision of the board.~~

SECTION 112 MEANS OF APPEALS

112.1 General. Appeals of decisions, determinations and interpretations of this code shall be made pursuant to the applicable provisions of Section 113 of the adopted *International Building Code*, entitled "MEANS OF APPEALS."

9. **SECTION 113 BOARD OF APPEALS** is deleted in its entirety.

SECTION 113 BOARD OF APPEALS

~~[A] 113.1 Membership of board. The board of appeals shall consist of five members appointed by the chief appointing authority as follows: one for 5 years; one for 4 years; one for 3 years; one for 2 years; and one for 1 year. Thereafter, each new member shall serve for 5 years or until a successor has been appointed.~~

10. **Section 114.4 Violation Penalties** is deleted in its entirety and replaced with the following:

~~[A] 114.4 Violation penalties. Persons who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair mechanical work in violation of the *approved construction documents* or directive of the code official, or of a permit or certificate issued under the provisions of this code, shall be guilty of a **[SPECIFY OFFENSE]**, punishable by a fine of not more than **[AMOUNT]** dollars or by imprisonment not exceeding **[NUMBER OF DAYS]**, or both such fine and imprisonment. Each day that a violation continues after due notice has been served shall be deemed a separate offense.~~

114.4 Violation penalties. Any person who violates a provision of this code or fails to comply with any of the requirements thereof or who alters or repairs a building or structure in violation of the *approved construction documents* or directive of the *code official*, or of a permit or certificate issued under the provisions of this code, commits a civil infraction and is subject to the provisions contained in § 1-15(f) of the City Code. Each day that a violation continues shall be deemed a separate offense.

11. **SECTION 202 GENERAL DEFINITIONS** is amended to modify, or add, the following definitions in alphabetical order:

...

CODE OFFICIAL. The officer or other designated authority charged with the administration and enforcement of this code, or a duly authorized representative. The term *code official* is interchangeable with the term *building official*.

...

MULTIFAMILY. Any *building* housing Group R-1, R-2 or R-4 occupancies.

...

WHOLE-DWELLING UNIT MECHANICAL VENTILATION SYSTEM. An exhaust system, supply system, or combination thereof that is designed to mechanically exchange indoor air for outdoor air when operating continuously or through a programmed intermittent schedule to satisfy the whole-dwelling ventilation rate.

...

12. A new **Section 309.2 Total Electric Heating** is added to read as follows:

309.2 Total Electric Heating. Primary indoor central heating systems utilizing only electric heat shall utilize a ground source heat pump system(s) or cold climate heat pump system(s) specifically designed to heat in cold climates and at the Winter Outdoor, Design Dry-Bulb temp defined in Section C301.5 of the *International Energy Conservation Code*. The heat pump system shall not be gas or propane fuel fired. Electric resistance strip heat shall serve only as emergency backup heat or supplemental heat at outdoor temperatures below 15°F as necessary.

Exceptions:

1. Where the total heating load is less than or equal to 6.0 Btu/h/ft² at design temperature, electric resistance heating shall be permitted.
2. Where conduit with pull string sized to accommodate future heating electrical requirements is installed.

13. **Section 403.3.2 Group R-2, R-3 and R-4 occupancies** is amended to read as follows:

403.3.2 Group R-2, R-3 and R-4 occupancies. The design of local exhaust systems and ventilation systems for outdoor air in Group R-2, R-3 and R-4 occupancies shall comply with Sections 403.3.2.1 through 403.3.2.57.

14. **Section 403.3.2.1 Outdoor air for dwelling units** is amended to read as follows:

403.3.2.1 Outdoor air for dwelling units. An outdoor air ventilation system consisting of a mechanical exhaust system, supply system or combination thereof shall be installed for each *dwelling unit*. Local exhaust

or supply systems, including outdoor air ducts connected to the return side of an air handler, are permitted to serve as such system. The outdoor air ventilation system shall be designed to provide the required rate of outdoor air continuously during the period that the *building* is occupied, and the system design documents shall be submitted, as required by the *building official*, at the time of application for a building *permit*. The minimum continuous outdoor airflow rate shall be determined in accordance with Equation 4-9.

Equation 4-9 $Q_{OA} = 0.031 A_{floor} + 7.5(N_{br} + 1)$

where:

Q_{OA} = outdoor airflow rate, cfm

A_{floor} = conditioned floor area, ft²

N_{br} = number of bedrooms; not to be less than one

Exceptions:

1. The outdoor air ventilation system is not required to operate continuously where the system has controls that enable operation for not less than 1 hour of each 4-hour period. The average outdoor airflow rate over the 4-hour period shall be not less than that prescribed by Equation 4-9.
2. The minimum mechanical ventilation rate determined in accordance with Equation 4-9 shall be reduced by 30 percent provided that both of the following conditions apply:
 - 2.1. A ducted system supplies *ventilation air* directly to each bedroom and to one or more of the following rooms:
 - 2.1.1. Living room.
 - 2.1.2. Dining room.
 - 2.1.3. Kitchen.
 - 2.2. The whole-house ventilation system is a *balanced ventilation system*.

15. A new **Section 403.3.2.6 Sound ratings for fans** is added to read as follows:

403.3.2.6 Sound ratings for fans. Whole-dwelling unit ventilation fans shall be rated for sound at maximum of 1.5 sones, in accordance with the procedures of the Home Ventilating Institute (*HVI 915, Procedure for Loudness Rating of Residential Fan Products*). Heating, ventilating and air conditioning air handlers and remote-mounted fans need not meet sound requirements.

16. A new **Section 403.3.2.7 Performance verification** is added to read as follows:

403.3.2.7 Performance verification. Performance of installed mechanical *ventilation* systems shall be verified in accordance with The City of Fort Collins Residential New Construction Mechanical Systems Testing Guide as part of the Multifamily Residential Mechanical Systems Performance Report provided to the *building official*.

17. **Section 504.1 Installation** is amended to read as follows:

504.1 Installation. Clothes dryers shall be exhausted in accordance with the manufacturer's instructions. Dryer exhaust systems shall **be independent of all other systems and shall** convey the moisture and any products of *combustion* to the outside of the *building*. **Dryer exhaust duct terminations shall not be located within 36 inches (914 mm) of exterior openings into conditioned spaces, crawl spaces, and attic spaces.**

Exception: This section shall not apply to *listed* and *labeled* condensing (ductless) clothes dryers.

18. **Section 506.3.11 Grease duct enclosures** is amended to delete the exception.

...

~~**Exception:** A grease duct enclosure shall not be required for a grease duct that penetrates only a nonfire-resistance-rated roof/ceiling assembly.~~

19. **Section 511.1 General** is amended to read as follows:

511.1 General. Where a subslab soil exhaust system is provided, the duct **for such systems** shall conform to the requirements of ~~this section~~. **Appendix BE of the *International Residential Code*, entitled "Radon Control Methods."**

20. **Section 601.5 Return air openings** is amended to read as follows:

601.5 Return air openings. Return air openings for heating, ventilation and air-conditioning systems shall comply with all of the following:

...

9. Return air taken from a closet smaller than 30 square feet (2.8 m²) shall require ~~the closet door be undercut not less than 1½ inches (38 mm) or have either~~ a louvered door or an air transfer grille, each with a net free area of not less than 30 square inches (19 355 mm²).

...

11. Return air for a *dwelling* shall be taken from inside the *dwelling*. Dilution of return air with *outdoor air* is permitted. A return air path shall be provided in all habitable rooms by means of ducts or transfer grills.

Exceptions:

...

21. **Section 602.2.1 Stud cavity and joist space plenums** is deleted in its entirety and replaced with the following:

~~**602.2.1 Stud cavity and joist space plenums.** Stud wall cavities and the spaces between solid floor joists to be utilized as air plenums shall comply with the following conditions:~~

- ~~1. Such cavities or spaces shall not be utilized as a *plenum* for supply air.~~
- ~~2. Such cavities or spaces shall not be part of a required fire resistance-rated assembly.~~
- ~~3. Stud wall cavities shall not convey air from more than one floor level.~~
- ~~4. Stud wall cavities and joist space *plenums* shall comply with the floor penetration protection requirements of the *International Building Code*.~~
- ~~5. Stud wall cavities and joist space *plenums* shall be isolated from adjacent concealed spaces by *approved* fireblocking as required in the *International Building Code*.~~
- ~~6. Stud wall cavities in the outside walls of *building* envelope assemblies shall not be utilized as air *plenums*.~~

602.2.1 Stud cavity and joist space plenums. *Building* framing cavities shall not be used as ducts or plenums.

22. A new **Section 603.19 Construction debris and contamination** is added to read as follows:

603.19 Construction debris and contamination. Mechanical air-handling systems and their related ducts shall be protected from the entrance of dirt, debris, and dust during the construction and installation process. Prior to passing final inspection or issuance of a Certificate of Occupancy, such systems shall be substantially free of construction-related contaminants.

23. **Section 801.19 Multistory prohibited** is amended to read as follows:

801.19 Multistory prohibited. Common venting systems for *appliances* located on more than one floor level shall be prohibited, except **engineered systems**

where all of the *appliances* served by the common vent are located in rooms or spaces that are accessed only from the outdoors. The *appliance* enclosures shall not communicate with the occupiable areas of the building.

24. A new **Section 903.1.1 Solid fuel fireplaces and appliances** is added to read as follows:

903.1.1 Solid fuel fireplaces and appliances. Solid fuel fireplaces, fireplace stoves and solid-fuel-type room heaters shall comply with § 5-110 of the City Code.

25. **Section 903.3 Unvented gas logs heaters** is deleted in its entirety.

~~**903.3 Unvented gas log heaters.** An unvented gas log heater shall not be installed in a factory built fireplace unless the fireplace system has been specifically tested, listed and labeled for such use in accordance with UL 127.~~

26. **SECTION 929 UNVENTED ALCOHOL FUEL-BURNING DECORATIVE APPLIANCES** is deleted in its entirety.

~~**SECTION 929 UNVENTED ALCOHOL FUEL-BURNING DECORATIVE APPLIANCES**~~

~~**929.1 General.** *Unvented alcohol fuel-burning decorative appliances* shall be listed and labeled in accordance with UL 1370 and shall be installed in accordance with the conditions of the listing, manufacturer's installation instructions and Chapter 3.~~

27. **Section 1109.2.5 Refrigerant pipe shafts** is amended to read as follows:

1109.2.5 Refrigerant pipe shafts. Refrigerant piping that penetrates two or more floor/ceiling assemblies shall be enclosed in a fire-resistance-rated shaft enclosure. The fire-resistance-rated shaft enclosure shall comply with Section 713 of the *International Building Code*.

Exceptions:

1. *Refrigeration* systems using R-718 refrigerant (water).
2. Piping in a direct refrigeration system using Group A1 refrigerant where the refrigerant quantity does not exceed the limits of Table 1103.1 or the limits in ASHRAE standards 15 and 34 for the smallest occupied space through which the piping passes.
3. Piping located on the exterior of the *building* where vented to the outdoors.

Section 4. The codifier of the Code of the City of Fort Collins is hereby directed to amend all existing cross references in the City Code and the Land Use Code in accordance with the provisions of this ordinance.

Section 5. The City Attorney and the City Clerk are hereby authorized to modify the formatting and to make such other amendments to this Ordinance as necessary to facilitate publication in the Fort Collins City Code; provided, however, that such modifications and amendments shall not change the substance of the Code provisions.

Introduced, considered favorably on first reading on December 2, 2025, and approved on second reading for final passage on December 16, 2025.

Mayor

ATTEST:

City Clerk

Effective Date: December 26, 2025

Approving Attorney: Madelene Shehan

Exhibit: Exhibit A – Notice of Publication